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Matter MAT-2026-0577 — Northwind Systems Pte Ltd — Standard Form Services Agreement (supplier side)

From: Adrian Foo (Commercial Director, Northwind Systems) <a.foo@northwindsys.com>

To: Jonathan Wee <jwee@weecorp-law.com.sg>

Date: 18 March 2026

Subject: New standard terms for our customers

Jonathan,

We need a refreshed standard services agreement to put in front of customers. This is our paper and it should read like it. We are a mid-sized supplier and our margins do not support open-ended exposure.

What I want: liability capped hard at fees paid, loss of profit excluded outright, no termination for convenience during the committed term, service credits as the sole remedy, and a default clause that gives the customer a right to terminate and nothing else — no step-in, no withholding, no set-off.

Adrian

From: Jonathan Wee <jwee@weecorp-law.com.sg>

To: Adrian Foo <a.foo@northwindsys.com>

Date: 19 March 2026

Subject: RE: New standard terms for our customers

Adrian,

Understood, and that is a legitimate position for a supplier form. Two cautions for the record.

A sole-remedy service credit clause is vulnerable where the credits are trivial relative to the loss. And an outright exclusion of loss of profit will be resisted by any sophisticated customer, because on a services contract direct loss of profit is often their only real loss. You will get further with a well-drafted cap than with a broad exclusion that invites an argument about reasonableness.

Drafting to your instructions regardless.

Jonathan